

File No.: EXP202302296

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the complaining party) filed a complaint with the Spanish Agency for Data Protection on December 28, 2022. The complaint is directed against AYUNTAMIENTO DE LARDERO with NIF P2608400D (hereinafter, the complained party). The reasons for the complaint are as follows: The complainant states that they do not know who performs the functions of Data Protection Officer (DPO) of the complained Ayuntamiento and whether the AEPD has been informed regarding their appointment.

On February 21, 2023, this Agency confirmed that on that date the complained party had not notified this Agency of the appointment of its Data Protection Officer.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the complained party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on February 27, 2023, as evidenced by the acknowledgment of receipt in the file. No response was received to this forwarding letter.

THIRD: On March 28, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complaining party was admitted for processing.

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FOURTH: On February 14, 2024, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the complained party, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 37 of the GDPR, classified under Article 83.4 of the GDPR.

FIFTH: The aforementioned initiation agreement was duly notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), on February 22, 2024. The complained party submitted a written statement of allegations in which, in summary, it stated that on April 12, 2023, it had awarded the contract for the appointment of the Data Protection Officer (DPO) of AYUNTAMIENTO DE LARDERO, while also notifying this Agency of said appointment. Consequently, it requests the filing of the sanctioning procedure.

To the statement of allegations, it provides both the mentioned contract award and a document evidencing the notification to this Agency of the DPO's appointment.

SIXTH: On December 10, 2024, the instructor of the procedure made a proposal for resolution, proposing that it be declared that AYUNTAMIENTO DE LARDERO, with NIF P2608400D, has infringed the provisions of Article 37 of the GDPR, classified under Article 83.4 of the GDPR.

SEVENTH: The aforementioned proposal was duly notified on December 16, 2024, and no allegations have been received from the complained party within the time frame granted for that purpose.

PROVEN FACTS

FIRST: On December 28, 2022, a complaint was filed with the Spanish Agency for Data Protection against AYUNTAMIENTO DE LARDERO.

The complaining party stated that they did not know who performed the functions of Data Protection Officer (DPO) of the complained Ayuntamiento and whether the AEPD had been informed regarding their appointment.

SECOND: On February 21, 2023, this Agency confirmed that on that date the complained party had not notified this Agency of the appointment of its Data Protection Officer.

THIRD: It is recorded in this Agency that on April 18, 2023, the complained party notified the appointment of its Data Protection Officer.

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I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

The Town Council of Lardero, like any other public entity, is obliged to comply with Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, regarding the protection of natural persons with regard to the processing of personal data and the free movement of such data - GDPR - and with Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights - LOPDGDD - concerning the processing of personal data it carries out, understanding personal data as "any information relating to an identified or identifiable natural person." An identifiable natural person is considered to be one whose identity can be determined, directly or indirectly, in particular by means of an identifier, such as a name, an identification number, location data, an online identifier, or one or several specific elements of the physical, physiological, genetic, mental, economic, cultural, or social identity of that person.

Furthermore, processing must be understood as "any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination, or any other form of enabling access, comparison or interconnection, restriction, erasure, or destruction."

The responsibility for processing in this case lies with the TOWN COUNCIL OF LARDERO, as it is the entity that determines the purposes and means of the processing it carries out in the exercise of its powers, pursuant to Article 4.7 of the GDPR:

"'controller' or 'data controller': the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; where the law of the Union or of the Member States determines the purposes and means of processing, the controller or the specific criteria for its designation may be provided for by the law of the Union or of the Member States."

III

Response to the Allegations

In its allegations regarding the initiation agreement, the respondent claims to have awarded a contract for the appointment of the DPO of the entity, in addition to having communicated this appointment to the AEPD. It provides documentation proving both points.

In response, it should be noted that there is a record in the file from this Agency, which confirms, as stated in the proven facts of this resolution, that on the date it was issued (February 21, 2023), no appointment of a DPO had been communicated by the respondent. As the respondent states, the aforementioned appointment was made on April 18, 2023.

Consequently, until that date, the respondent committed the infringement of Article 37 of the GDPR, since it had not appointed its DPO, an obligation provided for in paragraph 1.a) of the aforementioned article:

“The controller and the processor shall designate a data protection officer whenever:

a) the processing is carried out by a public authority or body, except for courts acting in their judicial capacity;”

This Agency positively values that the respondent has subsequently appointed the DPO, although this does not prevent the infringement from having already been committed.

No allegations have been received regarding the proposed resolution.

IV

Unfulfilled Obligation

Possible Violation of Article 37 GDPR

Public Administrations act as data controllers of personal data and, at times, perform functions as processors as appropriate, following the principle of proactive responsibility, to meet the obligations detailed in the GDPR, among which is the obligation to appoint a data protection officer, make their contact details public, and communicate this to the AEPD.

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Sections 1 and 7 of Article 37 of the GDPR refer to these obligations and establish, respectively:

“1. The controller and the processor shall designate a data protection officer whenever:

a) the processing is carried out by a public authority or body, except for courts acting in their judicial capacity;

(...)

7. The controller or the processor shall publish the contact details of the data protection officer and communicate them to the supervisory authority.”

Regarding the designation of the data protection officer, sections 3 and 5 of Article 37 of the GDPR state:

“3. When the controller or the processor is a public authority or body, a single data protection officer may be designated for several of these authorities or bodies, taking into account their organizational structure and size.

(...)

5. The data protection officer shall be designated based on their professional qualities and, in particular, their specialized knowledge of law and practice in data protection and their ability to perform the tasks referred to in Article 39.

6. The data protection officer may be part of the staff of the controller or the processor or perform their functions under a service contract.”

For its part, the LOPDGDD dedicates Article 34 to the “Designation of a data protection officer,” which provides:

“1. Controllers and processors shall designate a data protection officer in the cases provided for in Article 37.1 of Regulation (EU) 2016/679 (...)

3. Controllers and processors shall communicate within ten days to the Spanish Data Protection Agency or, where appropriate, to the regional data protection authorities, the designations, appointments, and dismissals of data protection officers both in cases where they are required to

designate one and in cases where it is voluntary.”

The file contains a verification carried out by staff of the AEPD on February 21, 2023, in the section of the Electronic Headquarters of this Agency called “DPD Consultation.” In it, it is verified that the City Council of Lardero has not communicated the contact details of its DPD to this Agency.

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Thus, it is confirmed that the City Council of Lardero has not designated a DPD as the notification of its appointment or designation is not recorded in this Agency, which is mandatory.

As indicated, the GDPR provides that the controller and processor must designate a DPD in the event that “the processing is carried out by a public authority or body,” as well as “publish the contact details of the data protection officer and communicate them to the supervisory authority.”

As stated in the previous section of this resolution, the fact that after the complaint the respondent has designated a DPD, remedying the infringement, does not prevent the fact that it had already been committed.

The known facts constitute an infringement attributable to the City Council of Lardero for violation of Article 37 of the GDPR, “Designation of the data protection officer.”

V

Classification and qualification of the infringement of Article 37 GDPR

The aforementioned infringement of Article 37 of the GDPR constitutes the commission of the infringements classified in Article 83.4 of the GDPR, which under the heading “General conditions for the imposition of administrative fines” provides:

“Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 10,000,000 EUR or, in the case of an undertaking, an amount equivalent to 2% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the obligations of the controller and the processor under Articles 8, 11, 25 to 39, 42, and 43; (...)”

In this regard, the LOPDGDD, in its Article 71 “Infringements” establishes that “Acts and conduct referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements.”

For the purposes of the limitation period, Article 73 “Infringements considered serious” of the LOPDGDD indicates:

“Based on what is established in Article 83.4 of Regulation (EU) 2016/679, the following are considered serious and shall be subject to a limitation period of two years: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

v) The failure to comply with the obligation to designate a data protection officer when their appointment is required in accordance with Article 37 of Regulation (EU) 2016/679 and Article 34 of this organic law.”

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VI

Sanction for the infringement of Article 37 of the GDPR

Article 83 “General conditions for the imposition of administrative fines” of the GDPR, paragraph 7, establishes:

“Without prejudice to the corrective powers of the supervisory authorities under Article 58, paragraph 2, each Member State may establish rules on whether and to what extent administrative fines may be imposed on authorities and public bodies established in that Member State.”

Furthermore, Article 77 “Regime applicable to certain categories of controllers or processors” of the

LOPDGDD provides as follows:

"1. The regime established in this article shall apply to the processing for which the following are responsible or processors:

c) The General Administration of the State, the Administrations of the autonomous communities, and the entities that comprise the Local Administration (...)

2. When the controllers or processors listed in paragraph 1 commit any of the infringements referred to in Articles 72 to 74 of this organic law, the competent data protection authority shall issue a resolution declaring the infringement and establishing, where appropriate, the measures that should be adopted to cease the conduct or to correct the effects of the infringement that has been committed, with the exception of that provided for in Article 58.2.i of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016.

The resolution shall be notified to the controller or processor, to the body to which it hierarchically depends, where applicable, and to the affected parties who have the status of interested parties, where applicable.

3. Without prejudice to the provisions of the previous paragraph, the data protection authority shall also propose the initiation of disciplinary proceedings when there are sufficient indications for it. In this case, the procedure and the sanctions to be applied shall be those established in the legislation on disciplinary or sanctioning regimes that is applicable.

Furthermore, when the infringements are attributable to authorities and executives, and the existence of technical reports or recommendations for processing that have not been duly addressed is proven, the resolution imposing the sanction shall include a reprimand naming the responsible official and shall order publication in the Official State Gazette or the corresponding autonomous gazette.

4. The resolutions relating to the measures and actions referred to in the previous paragraphs shall be communicated to the data protection authority.

5. The actions taken and the resolutions issued under this article shall be communicated to the Ombudsman or, where applicable, to the analogous institutions of the autonomous communities.

6. When the competent authority is the Spanish Agency for Data Protection, it shall publish on its website, with due separation, the resolutions referred to the entities in paragraph 1 of this article, with express indication of the identity of the controller or processor that has committed the infringement. (...)"

Therefore, for the infringement of Article 37 of the GDPR, and in accordance with the provisions of the aforementioned Article 77 of the LOPDGDD, it would be appropriate to issue a resolution declaring the infringement of the City Council of Lardero.

Thus, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE that the CITY COUNCIL OF LARDERO, with NIF P2608400D, has infringed the provisions of Article 37 of the GDPR, an infringement classified in Article 83.4 of the GDPR.

SECOND: TO NOTIFY this resolution to the CITY COUNCIL OF LARDERO.

THIRD: TO COMMUNICATE this resolution to the Ombudsman, in accordance with the provisions of Article 77.5 of the LOPDGDD.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution shall be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative process may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not become aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with Article 48.2 LOPDGDD, due to the vacancy of the Presidency and Deputy Presidency

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